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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC, AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1 to 5,

Defendants.

Case No. 8:22-CV-01727-FWS-JDE

Honorable Fred W. Slaughter

REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEFENDANT ACCURATE BACKGROUND LLC'S MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Date: February 16, 2023
Time: 10:00 a.m.
Place: Courtroom 10D

NOTICE IS HEREBY GIVEN THAT, pursuant to Federal Rule of Evidence 201, Defendant Accurate Background, LLC ("Accurate") hereby respectfully requests that the Court take judicial notice of the following exhibits in connection with Accurate's concurrently filed Motion to Dismiss Plaintiff's First Amended Complaint:

1. The "Case Summary" from the Orange County Superior Court's electronic criminal case search portal in Case No. 11WF0759, brought against Defendant Miguel Lerma, which is attached hereto as **Exhibit 1**.

2. The "Offender Profile" for Miguel Lerma from the California Megan's Law Website, operated by the State of California Department of Justice, Office of the Attorney General, which is attached as **Exhibit 2**.

The Court may take judicial notice of matters that are either "generally known within the trial court's territorial jurisdiction" or "can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Fed. R. Evid. 201(b). Documents that are a matter of "public record" are proper subjects for judicial notice pursuant to Fed. R. Evid. 201(b). *United States ex rel. Jones v. Sutter Health*, 499 F. Supp. 3d 704, 709 (N.D. Cal. 2020). "[O]n a motion to dismiss a court may properly look beyond the complaint to matters of public record and doing so does not convert a Rule 12(b)(6) motion to one for summary judgment." *Mack v. South Bay Beer Distribs.*, 798 F.2d 1279, 1282 (9th Cir. 1986), *abrogated on other grounds by Astoria Fed. Sav. & Loan Ass'n v. Solimino,* 501 U.S. 104, 111 (1991).

As such, the Court can and should take judicial notice of the foregoing documents, which are court records and public documents made available through official government websites. *See, e.g., Sutter Health*, 499 F. Supp. 3d at 709-10 (taking judicial notice of court filings and government announcements posted on official government websites); *Allergen USA, Inc. v. Prescribers Choice, Inc.*, 364 F. Supp. 3d 1089, 1095 (C.D. Cal. 2019) (judicial notice is appropriate for "information obtained from government websites"); *Roca v. Wells Fargo Bank, N.A.*, No. 15-CV-

02147, 2016 WL 368153, at *4 (N.D. Cal. Feb. 1, 2016) (taking judicial notice of court records, government records, and public documents). For these reasons, Accurate respectfully requests that the Court take judicial notice of the above-referenced documents, both of which are public records.

Dated: December 15, 2022

TROUTMAN PEPPER HAMILTON SANDERS LLP

By: */s/ Jessica Lohr*
Ronald I. Raether
Jessica Lohr

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ACCURATE BACKGROUND LLC